

Devanshu Bose v. Electricity Ombudsman, Lucknow and 4 Others

Allahabad High Court (Principal Bench, Allahabad) · Division Bench · 28 April 2026 · 2026 SCC OnLine All 9193 · Writ - C No. 15943 of 2026 · **Interim/procedural order; affidavit disclosure directed and matter adjourned (listed 14.5.2026)**

HEADNOTE

Interim order (no final adjudication). A resident of a gated housing colony complained that the difference between the electricity billed to the colony and the aggregate consumption recorded by the residents' prepaid house meters - alleged to represent theft, not the residents' own consumption - was being recovered from individual residents as 'common services' charges. The Court noted that under Clause 4.9 Part A, sub-clause (j) of the U.P. Electricity Supply Code, 2005 the developer/Residents' Welfare Association is mandated to apply for the connection in respect of common facilities, and directed the supply company to disclose, by affidavit, that application and the basis on which it can demand and recover common-facility charges from individual residents; the matter was adjourned. Recorded for corpus completeness; carries no final ratio.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

Common-facility connection to be applied for by developer/RWA; disclosure directed (interim)

QUESTION

On what basis may charges for consumption on common facilities be demanded from individual residents (interim consideration)?

HOLDING

Interim only. The Court observed that Clause 4.9 Part A(j) mandates the developer/Residents' Welfare Association to apply for the connection in respect of common facilities, and directed the supply company to disclose by affidavit the relevant application and the basis on which it can demand and recover common-facility charges from individual residents; the matter was adjourned. No final view was expressed. ¶ 3-5

LIMITING FACTS

Gated colony; difference between bulk supply and aggregate prepaid-meter consumption sought from residents as common-services charges, alleged to be recovery of theft; affidavit disclosure directed.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AND HOW COMMON-FACILITY/LINE-LOSS CHARGES MAY BE RECOVERED FROM INDIVIDUAL RESIDENTS

Left for adjudication after affidavit disclosure by the supply company; matter adjourned to 14.5.2026. ¶ 4-5